

MODERN INDIAN HISTORY



MODULE - 17

ADMINISTRATIVE STRUCTURE

1765-1853

PART-2

ADMINISTRATIVE SYSTEM UNDER BRITISH RULE

INTRODUCTION

EVOLUTION OF CONSTITUTIONAL DEVELOPMENT

1765-1858

UNDER THE
COMPANY RULE



1858- 1947

UNDER THE
BRITISH CROWN



These period witnessed a plethora of constitutional and administrative changes. The nature and objective of these changes were to serve the British interest but these changes also introduced elements of the modern State into India's political and administrative system.

INTRODUCTION

EVOLUTION OF CONSTITUTIONAL DEVELOPMENT



1765-1858

UNDER THE COMPANY RULE

DUAL ADMINISTRATION OF 1765

REGULATING ACT OF 1773

AMENDING ACT OF 1781

PITTS INDIA ACT OF 1784

CHARTER ACT OF 1793

CHARTER ACT OF 1813

CHARTER ACT OF 1833

CHARTER ACT OF 1853

1858-1947



UNDER THE BRITISH CROWN

GOVERNMENT OF INDIA 1858

INDIAN COUNCIL ACT 1861

INDIAN COUNCIL ACT 1892

INDIAN COUNCIL ACT 1892

MORLEY-MINTO REFORM ACT 1909

MONTAGU- CHELMSFORD REFORMS 1919

GOVERNMENT OF INDIA ACT 1935

INDIAN INDEPENDENCE ACT 1947

DIFFERENCE BETWEEN REGULATING ACT AND CHARTER ACT

REGULATING ACT

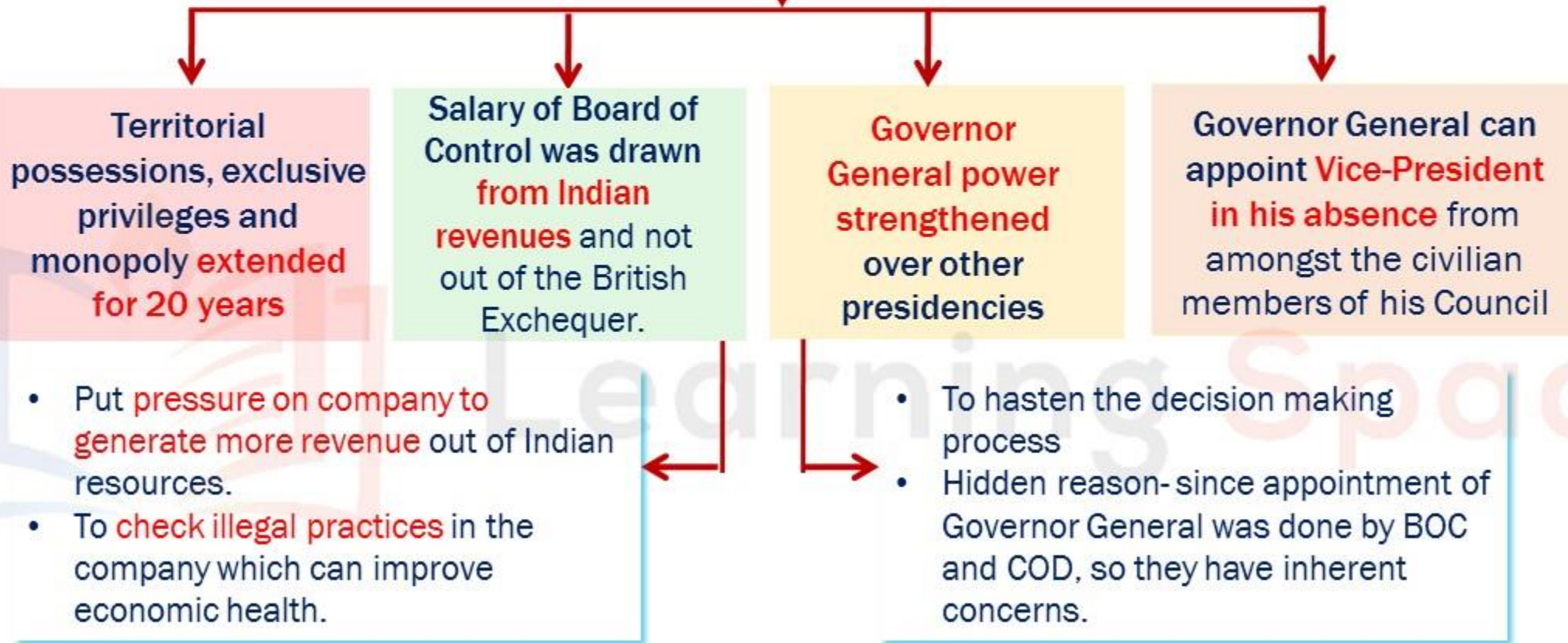
Regulating Act is that act which was used to **control and regulate affairs** of East India Company in India.

CHARTER ACT

- It is official statement used to **extend the company rule** in India for a definite period of time.
- First charter act was passed in 1793.
- These charters were renewed after 20 years i.e. in 1813, 1833 and 1853.

CHARTER ACT OF 1793

CHARTER ACT - 1793



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CHARTER ACT OF 1813

Trading privileges
renewed for next
20 years

CHARTER ACT - 1813

Act also provided for
the maintenance of
separate accounts
for commercial and
political activities

**SEPARATE
ACCOUNTS**

Monopoly
restricted to Tea
and China



British subjects
to go out to India
either as **traders**
or as
missionaries



Rs. 1 lakh for
promotion of
education



Act thus marks the **beginning of the ecclesiastical establishment in India.**

POINTS TO PONDER

WHY COMPANIES MONOPOLY WAS ABOLISHED IN 1813 AND FINALLY ENDED IN 1833?

- 1 During **American civil war**, there was demand of cotton and India was the cheap supplier.
- 2 There was need for supply of raw material to counter **inflationary pressure** during **Napoleon wars**.



So as to enable the other English companies to trade with India.

- 3 **Great changes** at home- Industrial revolution, coming of machine age, unprecedented production of finished goods **required huge raw material and wide markets for finished products.**



POINTS TO PONDER

WHY COMPANIES MONOPOLY WAS ABOLISHED IN 1813 AND FINALLY ENDED IN 1833?

4 With the triumph of liberal principles and laissez faire Government was supportive to **free market principles**.

5 Lobbying by the businessmen to open up the markets.

6 Pressure from **Christian missionaries** to carry their missionary activities.



THEORY

CHARTER ACT OF 1813- FEATURES

- 1** The power of provincial governments and courts in India over European British subjects was also strengthened.
- 2** It took away the exclusive privilege of the Company to trade in India. Indian trade was open to all British subjects except in tea and trade with China in which the Company was allowed to retain monopoly.
- 3** Act also provided for the maintenance of separate accounts for commercial and political activities by the Company.
- 4** It also **limited the number of British troops** the Company was allowed to maintain in India at its own expenses.
- 5** Setting of Rs. 100,000 for revival and improvement of literature and for the introduction and promotion of a knowledge of sciences.
- 6** Allowed British subjects to go out to India either as traders or as missionaries. Act thus marks the beginning of the ecclesiastical establishment in India.

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CHARTER ACT 1833

1

FEATURES OF THE ACT

CHARTER ACT - 1833

Trading privileges
renewed for next
20 years

Governor General
of Bengal
became **Governor
General of India**

Law commission
was formed for
Codifying,
consolidating and
improving the
Indian laws.

Number of the
members of the
**Governor
General's council**
was again fixed
to 4.

Final step
towards
centralization



WILLIAM BENTINCK-
First governor-general of India
(1828-1835)

Deprived governor of their legislative powers. Governor-General of India given exclusive legislative powers for the entire British India.

CHARTER ACT 1833

1

FEATURES OF THE ACT

CHARTER ACT - 1833



THOMAS MACAULAY
First law member of Governor
General in council

Companies commercial monopoly was ended. Now became purely administrative body.

Attempt to introduce a system of open competition in civil service. Negated after opposition from the Court of Directors.

Take measures for the abolition of slavery and improvement of the condition of the slaves

President of Board of control became Minister for Indian affairs.

Charter Act 1833 is also known as St. Helena Act.

CHARTER ACT 1833

3 CRITICAL EVALUATION

IMPACT OF CHARTER ACT

- Elevation of Governor General of Bengal as Governor General of India was a major step towards **consolidation and centralization** of the administration of India.
- End of East India Company as a commercial body effectively made it the **trustee of the crown** in the field of administration.

- Law commission under Lord Macaulay codified the laws.
- The Act of 1833 also enjoined upon the Government of India to take measures for the **abolition of slavery and improvement of the condition of the slaves**. This provision was acted upon in 1843.

POINTS TO PONDER

WHY LAW COMMISSION WAS FORMED?



THOMAS MACAULAY
First law member of
Governor General in council

- 1 There was much **confusion** in the administration of law and justice as there were diverse laws of conflicting nature.
- 2 For instance—
 - the Acts passed by British Parliament,
 - the Charter Acts,
 - laws made by the Governors-in-Council
 - orders of the Supreme Court
- 3 There was **no uniformity** between the laws passed by different Presidencies.

THEORY

CHARTER ACT OF 1833

FEATURES OF THE ACT

- 1 GG and his council was empowered to superintend, control and direct both the civil and military affairs of the company.
- 2 Number of the members of the Governor General's council was again fixed to 4, which had been reduced by the Pitt's India act 1784 for legislative purpose.
- 2 Laws made under previous acts were called as **Regulations** while laws made under this act were called as **Acts**.
- 3 Legalized the British colonization of India. It provided that the company's territories in India were held by it 'in trust for His Majesty, His heirs and successors'.
- 4 All laws made in India are to be placed in British parliament.
- 5 The Act of 1833 also enjoined upon the Government of India to take measures for the **abolition of slavery and improvement of the condition of the slaves**. This provision was acted upon in 1843.

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CHARTER ACT OF 1853

1

FEATURES OF THE ACT

CHARTER ACT - 1853

Did not renew the charter for significant period

Charter said that Indian territories will remain under company in trust for the crown.

Number of members of the Court of Directors was reduced to 18 from 24 and out of the 18, six were to be Crown nominees.

Separation of executive and legislature functions of governor general council

Law member included in legislative council as well as made the full member of executive council.

An act was needed to **struck a balance** between—**Company authority** over its territories and **Crown intervention** in company affairs.

LEGISLATIVE
MAKES LAWS

EXECUTIVE
CARRIES OUT LAWS



CHARTER ACT OF 1853

1

FEATURES OF THE ACT

CHARTER ACT - 1853

First time local representation was introduced in Indian legislative council

Four members were appointed by the local (provincial) governments of Madras, Bombay, Bengal and Agra

Civil services now thrown open to a competitive examination.

Provision for the appointment of a separate Governor for Bengal Presidency, distinct from Governor General of India

ADMINISTRATIVE SYSTEM BETWEEN 1765 TO 1773

CHARTER ACT OF 1853

2

CRITICAL EVALUATION

POSITIVE ASPECT

Power and influence of the company were curtailed as—

- Court of Directors were deprived of their power of making appointments.
- Further there was reduction of their number from 24 to 18
- Nomination of six Directors by British Crown further reduced their authority.

Marks the beginning of Parliamentary system in India because—

- Legislative Council was distinguished from the Executive Council, which functioned as mini-Parliament..

The Charter Act 1853 indicated clearly that the rule of the Company was not going to last a long time.

ADMINISTRATIVE SYSTEM BETWEEN 1765 TO 1773

CHARTER ACT OF 1853

2

CRITICAL EVALUATION

NEGATIVE ASPECT

Act created a separate Legislative Council
But in reality, the Executive Council was only enlarged for purposes of legislation

Inherent flaw in act is, it did not associate any Indian with the legislative body whereas its English members were not aware of the local conditions.

The exclusion of Indians aggravated discontent and proved to be one of the most important reasons for the outbreak of the mutiny.

Act ignored the most important demand of Bengal petitioners—Who had aspired for a sort of Provincial autonomy.

Though act introduced open system for competitive exam still there were barriers for Indian Civil Servants—

- caste and religious differences,
- heavy expenditure entailed in the competitive examinations and
- Long distance of travel as examination was conducted in London.

POINTS TO PONDER

WHY SEPARATE GOVERNOR WAS APPOINTED FOR BENGAL IN 1853??

- The objective was to relieve the burden of Governor General of Bengal of his administrative duties so that he can devote his whole time to work for the Government of India.
- This step brought a great improvement in administrative structure of India.

WHY SEPARATE LEGISLATIVE COUNCIL WAS MADE IN 1853??

- 1851, British Indian association sent a petition to the British parliament demanding establishment of a separate legislature.
- A separate body was needed to explicitly bring separation of power between legislative and executive.
- Legislative council functioned as mini-Parliament.

POINTS TO PONDER

WHY OPEN COMPETITION WAS INTRODUCED?

There was a **growing demand by Indian educated class** for introduction of Indians into administration.



Civil Service

By 1850s, there was general discussion and also **change in the attitude of the British Government** to bring Indians into administration.

To **correct the discrimination and injustice** being done against Indians as per Lord Cornwallis code of 1793.

As per **Macaulay committee** an **appointment** to the civil service of the company **should not be matter of favours but a matter of right**.

To show globally that British have concern for their colonies.

THEORY

CHARTER ACT OF 1853- FEATURES

- 1 It did not renew charter for significant period. Instead it said that Indian territories will remain under company in **trust for crown**.
- 2 The number of the **members of the Court of Directors was reduced to 18** from 24 and out of the 18, **six were to be Crown nominees**.
- 3 Introduced an open competition system of selection and recruitment of civil servants. The covenanted civil service was thus thrown open to the Indians also. Accordingly, the Macaulay Committee (the Committee on the Indian Civil Service) was appointed in 1854.
- 4 It introduced, for the first time, local representation in the Indian (Central) Legislative Council, functioned as mini-Parliament..
- 5 There was provision for the appointment of a **separate Governor for Bengal Presidency**, distinct from Governor General of India. However, the COD and the BOC were authorized to **appoint a lieutenant governor, till the appointment of a Governor was made**. Please note that the Lieutenant governor was appointed in 1854, but no Governor was appointed for Bengal till 1912.
- 6 Of six new legislative members of governor general's council, four members were appointed by the local (provincial) governments of **Madras, Bombay, Bengal and Agra**.

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